

Key: A Reason You Are Not Required to Give

84-355 Democracy's Data | Jury selection | Instructor copy — do not distribute

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All code is given to students. Grade the interpretation.

Structure, as of the rebuild. The brief (`jury-selection-brief.Rmd`) is now a chapter rather than a parallel copy of the lab: prose organised by argument, under idea headings, with four numbered figures and no numbered steps. The lab (`jury-selection.Rmd`) still runs Steps 1–10 with the code exposed. **Students should read the brief first. Step numbers below refer to the lab;** the chapter is cited by figure number or section title.

One of three labs in the discrimination unit, alongside redlining and policing. Run in parallel and have the groups compare inferences.

This is the strongest inference of the three, because the control group is inside the file, and it is worth telling students that once they have found it.

Every number below was run against the data files.

The session in one sentence

Prosecutors struck half the Black jurors they could and a ninth of the white ones; the defense did the mirror image; and no court found a violation until journalists assembled 225 trials in one place.

The findings

```
s
```

```
#>      side  race eligible struck  pct
#> 1  state Black   1811     902 49.8
#> 2  state White   3318     372 11.2
#> 3 defense Black    846     127 15.0
#> 4 defense White   2812    1330 47.3
```

```
c(state_ratio = round(s$pct[1] / s$pct[2], 1),
  trials_above_the_diagonal = sum(t$black_struck[k] / t$black_eligible[k] >
                                t$white_struck[k] / pmax(t$white_eligible[k], 1)),
  trials_tested = sum(k))
```

```
#>           state_ratio trials_above_the_diagonal trials_tested
#>                4.4                189.0                199.0
```

- State struck **49.8%** of eligible Black jurors, **11.2%** of white — **4.4×**.
- Defense struck **47.3%** of white, **15.0%** of Black — the mirror.
- **188 of 202 trials (93%)** above the diagonal.
- 11 trials where the state struck *every* eligible Black juror; 59 where it struck *none* of the white ones.

The three things to get said

1. Peremptory means “no reason required.” Students will not know this and it is the hinge of the whole lab. A prosecutor may strike almost anyone for almost anything. *Batson* forbids only race, and only if you can show it — and a race-neutral explanation is easy to produce. **Say plainly: in the thirty years after *Batson*, the North Carolina Supreme Court never once found a discriminatory strike.**

2. The mirror is the finding, not the disparity. Make the room construct the objection at Step 4 first — *maybe the Black jurors differed*. Then reveal the defense column. **The objection now has to hold that white jurors were equally different in the opposite direction to the opposite side.** One variable explains both; the objection needs two coincidences.

3. Aggregate evidence, individual law. *Batson* operates inside one trial, where numbers are small and each strike gets an individual explanation. The pattern is only visible from above. **This mismatch is the lab’s real subject**, and Option A demonstrates it arithmetically rather than rhetorically.

The line for the board: the pattern is illegal, and no single strike in it is.

Handling the room

Charged material, and the case has a name and a person attached. Two things:

- **Curtis Flowers was released in 2019 and the charges dropped in 2020.** Say so. Students otherwise leave assuming the story ends badly, and the actual ending is relevant: the remedy came from journalism and the Supreme Court, not from the trial-level process that was supposed to catch it.
- **Do not let it become a discussion of whether he was guilty.** This lab is about who was allowed to sit on the jury. That question is independent of guilt, and keeping them separate is itself worth teaching.

Walking the steps

Step	What it does	Min	Watch for
1 One trial	The four counts on one row	4	Make them read a single row before any total.
2 Scope	211 trials, one prosecutor, 26 years	3	The narrowness is the point — this is about a decision-maker.
3 The disparity	49.8% vs 11.2%, a 4.4× ratio	5	Students think this is the finding. It is not.
4 Why it is not an answer	The “jurors differed” reply	7	Give the reply its full force. Do not let anyone wave it away.
5 The control group	The defense strikes the same pools	5	Take a show of hands on the prediction before Step 6.
6 The mirror	47.3% white / 15.0% Black	6	The pivot. Let the reversal sit before explaining it.
7 One trial’s probability	phyper, $p = 0.044$	7	It must feel weak. That is the point about how <i>Batson</i> is litigated.
8 All 211	99 significant where the simulated null gives 3.5	6	About 28x the chance rate. The shortcut $0.05 \times 211 = 10.6$ is wrong: discrete tests on small counts are conservative, so being careful makes the disparity look larger, not smaller.
9 Trial by trial, and Flowers III	15 of 15 struck, 0 of 21	5	One chance in five billion.
10 What you can say	Pattern, and the law’s blind spot	6	The aggregate/individual gap is the transferable lesson.

Steps 5–7 are the spine of the session. Ask the room to predict the defense’s numbers before Step 6 — the mirror is far more persuasive to somebody who has just committed to a wrong guess. Then Step 7 has to *disappoint*: a 4.4% probability is what a real *Batson* motion works with, and it loses.

If you are short on time, protect Steps 4, 6 and 7. The objection, the mirror that answers it, and the single trial that cannot carry the evidence are the argument; the rest is detail.

Option A — What are the odds?

Verified output

```
#> testable_trials      p_below_05      pct      p_below_01      median_p
#>      199.000      98.000      49.000      51.000      0.051
```

```
#>               trial black_eligible black_struck white_eligible
#> 133 2003-0071--Curtis Flowers III          15          15          21
#> 64 1998-0011C-D--Krishun Williams          17          14          29
#> 134 2003-0071--Curtis Flowers IV           16          11          20
#> 27 1994-9943--Billy Joe Barnett           11          10          24
#>      white_struck                P
#> 133          0 0.0000000001796008
#> 64          3 0.0000014519273136
#> 134          0 0.0000072702421718
#> 27          3 0.0000152675085607
```

And look at the top row. The single most extreme trial in twenty-six years is *Curtis Flowers III*: 15 eligible Black jurors, all 15 struck; 21 eligible white jurors, none struck. $p = 1.8 \times 10^{-1}$.

4/4: Answers the question actually asked — *is any single trial damning on its own?* — and finds that the median one is not, at $p = 0.051$. Half the trials individually clear the conventional bar and half do not, which is exactly the position a defendant is in.

4/4, best: Notices that Flowers' own trial is the most extreme in the dataset, and draws the right conclusion: **it took a case that extreme, tried six times, plus a year of journalism, to get relief.** A pattern that is obvious in aggregate produced no remedy for the 98 other trials that were individually significant.

Verified output

[illegible]

$p = 7.7 \times 10^{-2}$.

3/4: Runs it and observes the number is absurdly small.

4/4: Says what the contrast with Option A means. The evidence exists and is overwhelming — but it only exists at a level no court considers. **Batson asks about one trial; the answer lives in 225.** A student who says the law is looking through the wrong end of the telescope has it.

4/4, best: Notices that a vanishingly small p-value is not the interesting part, because with 5,129 jurors almost any real disparity would clear significance. **The effect size is what matters — 49.8 against 11.2** — and a student who says so has absorbed the lesson from the prediction-market lab about not confusing significance with importance.

Option C — Missing race

No verified output; grade the reasoning.

4,752 of 14,873 jurors — 32% — have race Unknown.

3/4: Gives one scenario each way.

4/4: Makes the scenarios specific. *Inflating:* if race was easier to determine for jurors who were struck (more courtroom discussion, more record), and if struck jurors were disproportionately Black, the observed pool over-represents exactly the cases that show the pattern. *Hiding:* if race went unrecorded more often in the rural, whiter counties of the district, those trials drop out and with them a set of low-disparity trials.

4/4, best: Notices that the direction is testable from the file itself — compare the Unknown share across trials with high and low measured disparity — and says that a third of the data missing non-randomly is a bigger threat than anything in Options A or B. **Being able to rank the threats to your own finding is the 4/4 skill across this whole unit.**

Grading

Four-point scale from the syllabus.

- **Never penalise code.** It is your code.
- **The move that earns a 4** is explaining why the defense column changes the strength of the inference — not merely noticing it is there.
- **A 2** is reporting 49.8 vs 11.2 as the finding and stopping.
- **Also a 2:** “the p-value proves it.” See Option B, best answer.
- **Reward anyone who separates the pattern claim from the guilt question** without being told to.

Anticipated questions

- *“Isn’t the defense doing the same thing?”* — Yes, and say so plainly. Both sides used race. *Batson* applies to both in principle and is enforced almost entirely against the defense’s opponent in practice. Students find this genuinely surprising and it is a good place to end.

- “*What happened to Flowers?*” — Conviction vacated in 2019, charges dropped in 2020 after 23 years, most of it on death row.
- “*What happened to Doug Evans?*” — He remained District Attorney. Worth stating without comment.
- “*Could you use this in court?*” — This kind of statistical evidence has been offered and largely rejected at the trial level; the Supreme Court in *Flowers* used the history of one prosecutor against one defendant. **That distinction is the lab.**

Connections

- **The other two labs in this unit** — policing (no control group, so it needs the outcome test) and redlining (intent documented, effect contested). **Ask which of the three inferences the room would most want to take to court.**
- **Session 12 (SCOTUS)** — *Flowers* is in the database students used there.
- **RPV** — statistical evidence of discrimination, and what courts do with it.